SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER:

2. CONTRACT NUMBER:

3. AWARD/EFFECTIVE DATE:

4. ORDER NUMBER:

5. SOLICITATION NUMBER: N0018926RW0160001

6. SOLICITATION ISSUE DATE: 23 Apr 2026

7. FOR SOLICITATION INFORMATION CALL:
a. NAME: Kelley Nevelsteen
b. TELEPHONE NUMBER *(No collect calls)*: 771-229-3520

8. OFFER DUE DATE/ LOCAL TIME: 11 May 2026 10:00 AM

9. ISSUED BY — CODE N00189

NAVSUP FLT LOG CTR NORFOLK
ATTENTION CODE 301, 1968 GILBERT STREET SUITE 600
NORFOLK, VA 23511-3392
UNITED STATES
Kelley Nevelsteen, Email: kelley.j.nevelsteen.civ@us.navy.mil Telephone: 771-229-3520

10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100 % FOR:

- ☒ SMALL BUSINESS
- ☐ HUBZONE SMALL BUSINESS
- ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB)
- ☐ WOMEN-OWNED SMALL BUSINESS (WOSB)
- ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB)
- ☐ 8(A)

NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 541330

SIZE STANDARD: USD 47,000,000.00

11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE

12. DISCOUNT TERMS:

13a. ☐ THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)

13b. RATING:

14. METHOD OF SOLICITATION: ☐ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☒ REQUEST FOR PROPOSAL (RFP)

15. DELIVER TO — CODE:

See Schedule

16. ADMINISTERED BY — CODE:

17a. CONTRACTOR/ OFFEROR — CODE: — FACILITY CODE:

TELEPHONE NUMBER

17b. ☐ CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18a. PAYMENT WILL BE MADE BY — CODE:

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM

19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	See Schedule				
	(Use Reverse and/or Attach Additional Sheets as Necessary)				

25. ACCOUNTING AND APPROPRIATION DATA: See Section G - Contract Administration Data

26. TOTAL AWARD AMOUNT *(For Government Use Only)*:

☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED

☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED

☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN ______ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

☐ 29. AWARD OF CONTRACT: REFERENCE ____________ OFFER DATED ____________. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR

30b. NAME AND TITLE OF SIGNER *(Type or print)*

30c. DATE SIGNED

31a. UNITED STATES OF AMERICA *(SIGNATURE OF CONTRACTING OFFICER)*

31b. NAME OF CONTRACTING OFFICER *(Type or print)*

31c. DATE SIGNED

Section A - Solicitation/Contract Form

Operational Test and Evaluation Services

The Government intends to solicit and award a Firm-Fixed Price (FFP), Seaport NxG Task Order as a result of the solicitation in accordance with FAR Subpart 16.5, and FAR Part 19. This requirement will be competed as a 100% Small Business Set-Aside. It is anticipated that award will be made on or around 11 May 2026.

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

LOCAL TEXT "UNLIQUIDATED OBLIGATIONS"

The Government intends to unilaterally deobilgate any unliquidated obligations 90 days after each period of performance. Prior to doing so, the Contracting Officer (or Administrative Contracting Officer) will notify the contractor of the intended amount of deobligation and ask the contractor to confirm within one week that all invoices for the completed period of performance have been submitted and processed for payment (with the exception of any invoice for rate adjustment upon receipt of DCAA approved final rates for any cost-type CLINs or SLINs). Upon confirmation that all invoices have been submitted and processed for payment, or upon the contractor's failure to respond to the PCO/ACOs notification of intent to deobligate, the Contracting Officer or Administrative Contracting Officer will unilaterally deobligate the potential ULOs by reducing the funded amount to an amount equal to the contractors invoiced/paid amount for that contract period of performance.

Note: Reduction of cost-reimbursement CLINs or SLINs in accordance with the above DOES NOT change either party's obligations under a Final Invoice submitted upon DCMA establishing final rates for each CLIN and or SLIN.

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
5000	Base Period in accordance with the PWS. (RDT&E) Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 5100	Option Period 1 Labor in accordance with the PWS. (RDT&E) Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 5200	Option Period 2 Labor in accordance with the PWS. (RDT&E) Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 5300	Option Period 3 Labor in accordance with the PWS. (RDT&E) Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 5400	Option Period 4 Labor in accordance with the PWS. (RDT&E) Pricing Arrangement: Firm Fixed Price	12	Months		
7000	Base Period Travel in accordance with the PWS. Not to Exceed $11,669.84	1	Lot		

	Pricing Arrangement: Cost No Fee				
Option Line Item 7001	Option Period 1 Travel in accordance with the PWS. Not to exceed $12,019.94 Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 7002	Option Period 2 Travel in accordance with the PWS. Not to exceed $12,320.44 Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 7003	Option Period 3 Travel in accordance with the PWS. Not to exceed $12,566.84. (RDT&E) Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 7004	Option Period 4 Travel in accordance with the PWS. Not to exceed $12,818.17. (RDT&E) Pricing Arrangement: Cost No Fee	1	Lot		

Section C - Description/Specifications/Statement of Work

See section J, Attachment 1: Performance Work Statement

Requirements

Performance Work Statement

Section D - Packaging and Marking

All deliverables shall be packaged and marked IAW Best Commercial Practices.

Section E - Inspection and Acceptance

QASP

Purpose: To ensure that the government has an effective and systematic method of surveillance for the services in the PWS. The QASP will be used primarily as a tool by the contractor and the government to verify that the contractor is performing all services required by the PWS in a timely, accurate and complete manner.

1. Critical performance processes and requirements. Critical to the performance of these services is the timely, accurate and thorough completion of all contract/task order requirements.

2. Quality Definitions.

a. Milestones. A milestone is any meeting, defined as part of a test design, test planning, modeling and simulation validation or test reporting process as outlined in references listed in section 13 of this document, or any Test and Evaluation (T&E) meeting outlined by a formal or informal T&E WIPT determination. Informal or intermediate milestones may also be established by the government at the discretion of the Operational Test Director (or similar government representative); this informal milestone may also be referred as a "deadline" or "due date" etc.

b. Deliverables.

i. Any test document or product considered to be the final test document meant for

routing to signature by the government as outlined in Table 2-4 of the OPTEVFOR M-3980.2 series. This includes but is not limited to Integrated Evaluation Frameworks, Test Plans, and Test Report products. in accordance with the specific work statement for a program. The contractor retains responsibility for performing any work specified in the Statement of Work until the specific test document or product is signed by the appropriate authority.

ii. Any intermediate test document or product created or edited by the vendor that is not considered to be a T&E document, as defined in QASP paragraph 2.b.i, intended to be in support of a final document deliverable. This includes all read ahead material to support intermediate or final Mission Based Test Design, Test Planning, Test Reporting, or other efforts directed by the government in accordance with the specific work statement for a program.

iii. Any draft test document or product developed for collaboration with the government or T&E stakeholders for intermediate or final test documents that is not considered to be a T&E document, as defined in QASP paragraph 2.b.i or 2.b.ii, purposed to be in support of a final document deliverable.

c. Quality Scale. In general terms, comments regarding quality may be described in the following terms:

i. **Critical (C)** comments are provided because sections in the document appear to be or are potentially incorrect, incomplete, missing pertinent T&E information, or not in accordance with the prescribed applicable template. Critical comments preclude the test team from proceeding to meet the next scheduled milestone.

ii. **Substantive (S)** comments are provided because sections in the document appear to be or are potentially unnecessary, have minor incorrect, incomplete, misleading, confusing information, or inconsistencies with other sections that do not preclude the test team from proceeding to meet the next scheduled milestone.

iii. **Administrative (A)** comments are provided because sections in the document appear to contain typographical, formatting, or grammatical errors. Administrative comments do not preclude the test team from proceeding to meet the next scheduled milestone.

iv. The government designated representative shall qualify each comment (or group of comments) with its appropriate level of criticality (C, S, A) to support First Pass Yield (FPY) determinations, when appropriate.

3. Performance Standards

Schedule - The due dates for deliverables and the actual accomplishment of the schedule will be assessed against original due dates and milestones established for the contract or task order(s).

.Performance Standard for Acceptable Quality Level

a. Performance Metric (Schedule). An accepted schedule metric of above 95 percent (>95%) FPY for delivery of all intermediate or final test document or products on time related to prescribed deadlines provided by the designated government representative. If the contractor does not provide a test document or product due to schedule slip by the contractor resulting in a missed deadline (termed here as a 'schedule defect'), it will result in a failure to meet the FPY performance metric.

b. Timeliness of Deliverables.

i. Intermediate Test Product Deadline. Delivery of all intermediate test product (i.e. read ahead material) shall be provided to the Warfare Division Section Head (or designated representative) for acceptance by the government in accordance with timelines outlined in the applicable published checklist, handbook, best practice, etc. These publications are posted to the OPTEVFOR SharePoint site (NIPR) or OT&E Reference Library folder or OT&E Production Library folder on the Y: drive (SIPR).

ii. Draft Test Product Collaboration. The contractor may submit draft or "working" versions of the intermediate test product to the Operational Test Director (OTD), Lead Test Engineer (LTE), etc. as required to enable collaboration, obtain early feedback, or facilitate efforts to resolve T&E issues or questions within the document. Review of a draft product shall not be considered as "Submission of Deliverables to the Government" and draft Test Product Collaboration shall not delay or disrupt required schedule of delivery for intermediate or final test product deadlines.

iii. Schedule Slip due to Government Induced Delays. Inherent to the acquisition process, a program may experience a schedule slip due to various factors. These "Government Induced Delays" may impact or affect the timelines for deliverables as outlined in the Statement of Work for each Task Order (TO). In the event of a Government Induced Delay, it is the responsibility of the OTD, Section Head, and contractor assigned to the specific TO, to alert the Warfare Division Deputy Director or their alternate at the soonest possible time. The OTD, Section Head, LTE and contractor shall assess the impact of the delay on schedule deadlines provided to the contractor. If the delay is significant enough to prevent the contractor from submitting deliverables on time, the OTD (or designated government representative) shall discuss the potential impact to the overall schedule with the Contracting Officer Representative (COR) and contractor to determine if a formal modification to the overall schedule with an updated schedule for deliverables (to include intermediate test products) is required.

iv. Schedule Slip due to Contractor Delays. If the contractor fails to submit deliverables to the government, not due to government induced delays or where an adjusted deadline has not been approved by the designated government representative, this will be considered a schedule slip due to contractor delays. Any unplanned schedule slip due to a contractor delay must be forecasted as soon as recognized to the government representative by the contractor to afford corrective mitigation to the acquisition schedule.

c. Deliverables - The deliverables section required to be submitted will be assessed against the specifications for the deliverables detailed in the contract/task order(s) and the Quality Control Plan (QCP), if required by the contract, for the required content, quality, timeliness, and accuracy.

i. Submission of Deliverables to the Government. All Deliverables listed will be delivered by the Contractor in accordance with the Quality Assurance Surveillance Plan (QASP). For determination of **"Timeliness"**, the contractor shall submit deliverables via email to the OTD, Section Head, and other applicable recipients identified at time of task order award and/or during execution during the Period of Performance (PoP). Upon receipt, the Section Head will send an email to the Warfare Division Deputy Director facilitating the formal government's position for the respective product for timeliness and/or accuracy within 48 hours upon receipt of the deliverable. The Warfare Division Deputy Director or alternate will forward a copy of this email to the Contracting Officer's Representative (COR) and prime vendor representative for the TO as required; the email will become part of the COR folder for that respective TO.

ii. Government Induced Errors (GIE) after Contractor submission to the Government. A government induced error is defined as an error that was determined to be qualitatively or quantitatively incorrect from the original contractor's submission of that deliverable to the government. Any GIE identified shall not be counted as part of the First Pass Yield (FPY) as described in paragraph 3.e. of this document.

iii. Acceptance of Deliverables by the Government. Any test document, as outlined above in QASP paragraph 2. b.i, is accepted by the government when the specific test document or product is signed by the appropriate authority. Any intermediate deliverable, as outlined above in QASP paragraph 2.b.ii, is accepted by the government when the Section Head, OTC, or OTD (if delegated) has approved the deliverable to be issued as read ahead material for a test product milestone meeting or document routing for signature. Acceptance by the government may be via memorandum, e-mail (preferred), or verbal statement (followed by an email). Acceptance by the government states it now has sole responsibility for that document.

Performance Standard for Acceptable Quality Level.

i. An accepted quality metric of above 95 percent (>95%) FPY is desired for delivery of all intermediate or final test document or products without administrative, substantive, or critical comments related to document quality (termed here as a 'quality defect'). This is also defined as 'No rework required'.

ii. FPY percentage is defined as **number of documents accepted** by the government for the first time for an intended purpose divided by the **total number of documents provided** to the government for the first time for an intended purpose, **multiplied by 100**. Draft test documents or products will not count towards FPY until formally submitted to the government for an intended purpose to meet intermediate or final test product milestones.

i. Any comment related to the lack of specific System Under Test (SUT) or programmatic information required for a T&E document is not considered to be a quality defect.

ii. If, at any time, the FPY is below 85 percent (<85%), or the government perceives repetitive or consistently poor performance regardless of FPY metrics, the issue shall be referred to the COR for further action.

b. Past Performance - In addition to any schedule and deliverable aspects of performance discussed above, pursuant to FAR 42.15, the government will assess the contractor's record of conforming to contract requirements and to standards of good workmanship, the contractor's adherence to contract schedules including the administrative aspects of performance, the contractor's history of reasonable and cooperative behavior and commitment to customer satisfaction, and the contractor's business-like concern for the interest of the customer.

2. Surveillance methods: The primary methods of surveillance used to monitor performance of this contract will include, but not be limited to, random or planned sampling, periodic inspection, and validated customer complaints.

3. Performance Measurement: Performance will be measured in accordance with the following table:

Performance Element	**Performance Requirement**	**Surveillance Method**	**Frequency**	**Acceptable Quality Level**
Contract Deliverable A001	T&E Documents or Briefs	Periodic /Customer Input	Planned/Task Order Initiated	>95% of deliverables submitted timely and without rework required
		Periodic		

Contract Deliverable A002	Trip Report	/Customer Input	Planned/Task Order Initiated	>95% of deliverables submitted timely and without rework required
Contract Deliverable A003	Monthly Status Report (MSR)	Periodic /Customer Input	Planned/Task Order Initiated	>95% of deliverables submitted timely and without rework required
Contract Deliverable A003	Financial Status Report	Periodic /Customer Input	Monthly starting after the third month of contract award.	>95% of deliverables submitted timely and without rework required

Overall Contract Performance	Overall contract performance of sufficient quality to earn a minimum Satisfactory rating in the COR's annual report on contractor performance	Assessment by the COR	Annual or at completion of performance	All performance elements rated Satisfactory (or higher)
Invoicing	Invoices per contract procedures are timely and accurate.	Review and acceptance of the invoice	As specified in contract	100% accuracy
DFARS clause 252.239-7001, Information Assurance Contractor Training and Certification	100% compliance with the clause (As required)	100% surveillance	As specified in DFARS clause 252.239-7001	100% compliance
FAR clause 52.222-50, Combating Trafficking in Persons	100% compliance with the clause	100% surveillance	As specified in FAR clause 52.222-50	100% compliance

If performance is within acceptable levels, it will be considered to be satisfactory. If not, overall performance may be considered unsatisfactory.

1. Incentives/Disincentives:

The COR makes an annual report on contractor performance Contractor Performance Assessment Reporting System (CPARS) or other annual report. The contractor's failure to achieve a minimum satisfactory performance under the contract/task order, reflected in the COR's annual report, may result in termination of the contract/task order and may also result in the loss of future government contracts/task orders. The contractor's failure to achieve a minimum satisfactory performance under the contract/task order may result in the non-exercise of any available options, if applicable.

For each item that does not meet acceptable levels, the government may issue a Contract Discrepancy Report (CDR). CDRs will be forwarded to the Contracting Officer with a copy sent to the contractor. The contractor must reply in writing within 5 days of receipt identifying how future occurrences of the problem will be prevented. Based upon the contractor's past performance and plan to solve the problem, the Contracting Officer will determine if any further action will be taken.

For fixed-price contracts/orders, in accordance with the inspection of services provisions, the contractor will be incentivized to provide quality products in a timely manner since the government can require the Contractor, at no additional cost, to replace or correct work that fails to meet contract requirements.

(End of QASP)

COMMUNICATIONS DURING THE LIFE OF THE CONTRACT (SEP 2015)

(a) Except as specified in paragraph (b) below, no order, statement, or conduct of Government personnel who visit the Contractor's facilities or in any other manner communicates with Contractor personnel during the performance of this contract shall constitute a change under the "Changes" clause of this contract.

(b) The Contractor shall not comply with any order, direction or request of Government personnel unless it is issued in writing and signed by the Contracting Officer, or is pursuant to specific authority otherwise included as a part of this contract.

(c) The Contracting Officer is the only person authorized to approve changes in any of the requirements of this contract and, notwithstanding provisions contained elsewhere in this contract, the said authority remains solely the Contracting Officer's. In the event the contractor effects any change at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in charges incurred as a result thereof. The address and telephone number of the Principal Contracting Officer is:

Carlton Walton

carlton.t.walton.civ@us.navy.mil

(564) 230-1424

Overall Contract Inspection/Acceptance Locations

5000	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: N57023 CountryCode: USA OPERATIONAL TEST AND EVALUATION FORCE, 7970 DIVEN ST NORFOLK, VA 23505-1498 UNITED STATES Tim Burrows, Contracting Officer Representative

	Email: timonty.r.burrows.civ@us.navy.mil Telephone: (757) 457-6563
Option Line Item 5100	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: N57023 CountryCode: USA OPERATIONAL TEST AND EVALUATION FORCE, 7970 DIVEN ST NORFOLK, VA 23505-1498 UNITED STATES Tim Burrows, Contracting Officer Representative Email: timothy.r.burrows.civ@us.navy.mil Telephone: 757-457-6563
Option Line Item 5200	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: N57023 CountryCode: USA OPERATIONAL TEST AND EVALUATION FORCE, 7970 DIVEN ST NORFOLK, VA 23505-1498 UNITED STATES Tim Burrows, Contracting Officer Representative Email: timothy.r.burrows.civ@us.navy.mil Telephone: 757-457-6562
Option Line Item 5300	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: N57023 CountryCode: USA OPERATIONAL TEST AND EVALUATION FORCE, 7970 DIVEN ST NORFOLK, VA 23505-1498 UNITED STATES Tim Burrows, Contracting Officer Email: timothy.r.burrows.civ@us.navy.mil Telephone: 757-457-6563
Option Line Item 5400	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: N57023 CountryCode: USA OPERATIONAL TEST AND EVALUATION FORCE, 7970 DIVEN ST

	NORFOLK, VA 23505-1498 UNITED STATES Tim Burrows, Contracting Officer Representative Email: timothy.r.burrows.civ@us.navy.mil Telephone: 757-457-6563
Option Line Item 7001	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: N57023 CountryCode: USA OPERATIONAL TEST AND EVALUATION FORCE, 7970 DIVEN ST NORFOLK, VA 23505-1498 UNITED STATES Tim Burrows, Contracting Officer Representative Email: timothy.r.burrows.civ@us.navy.mil Telephone: 757-457-6563
Option Line Item 7002	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: N57023 CountryCode: USA OPERATIONAL TEST AND EVALUATION FORCE, 7970 DIVEN ST NORFOLK, VA 23505-1498 UNITED STATES Tim Burrows, Contracting Officer Email: timothy.r.burrows.civ@us.navy.mil Telephone: 757-457-6563
Option Line Item 7003	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: N57023 CountryCode: USA OPERATIONAL TEST AND EVALUATION FORCE, 7970 DIVEN ST NORFOLK, VA 23505-1498 UNITED STATES Tim Burrows, Contracting Officer Representative Email: timothy.r.burrows.civ@us.navy.mil Telephone: 757-457-6563

Section F - Deliveries or Performance

DURATION OF CONTRACT PERIOD (SEP 2015)

(a) This contract shall become effective on **16 May 2026**, or the effective date of award, whichever is later, and the ordering period shall continue in effect during the period ending **15 May 2031** unless terminated in accordance with other provisions herein. Performance under task orders issued under this contract may begin **on the effective date of award** and may continue in effect during the period ending **365 days** after the last day of the ordering period.

(b) Notwithstanding the above, the Contracting Officer may extend the contract ordering period to accommodate the issuance of task orders in accordance with paragraph (e) of "Level of Effort".

Overall Contract Delivery Period

Contractor
Destination

Line Item	**Delivery Schedule**	**Quantity**	**Address and POC**
5000	Period of Performance From 16 May 2026 To 15 May 2027	12 Months	
Option Line Item 5100	Period of Performance From 16 May 2027 To 15 May 2028	12 Months	
Option Line Item 5200	Period of Performance From 16 May 2028 To 15 May 2029	12 Months	
Option Line Item 5300	Period of Performance From 16 May 2029 To 15 May 2030	12 Months	
7000	Period of Performance From 16 May 2026 To 15 May 2031	1 Lot	
Option Line Item 7001	Period of Performance From 16 May 2027 To 15 May 2028	1 Lot	
Option Line Item 7002	Period of Performance From 16 May 2028	1 Lot	

	To 15 May 2029		
Option Line Item 7003	Period of Performance From 16 May 2029 To 15 May 2030	1 Lot	
Option Line Item 7004	Period of Performance From 16 May 2030 To 15 May 2031	1 Lot	

Section G - Contract Administration Data

Contracting Officer Representative

Timothy Burrows

1968 Gilbert Street Ste 600

Norfolk, VA 23511-3392

757-457-6563

SECURITY ADMINISTRATION (SOLICITATION) (SEP 2015)

The highest level of security that will be required under this contract is Top-Secret, eligible for Top Secret Sensitive Compartmented Information (SCI) as designated on DD Form 254 attached hereto and made a part hereof.

The offeror shall indicate the name, address and telephone number of the cognizant security office;

____

____

____

The facilities to be utilized in the performance of this effort have been cleared to

________________________________ level.

The offeror should also provide the above information on all proposed subcontractors who will be required to have a security clearance.

SECURITY ADMINISTRATION (CONTRACT) (SEP 2015)

The highest level of security required under this contract is Top-Secret, eligible for Top Secret Sensitive Compartmented Information (SCI) as designated on DD Form 254 attached hereto and made a part hereof.

The Commander, Defense Investigative Service, Director of Industrial Security,
Region, is designated Security Administrator for the purpose of administering all elements of military security hereunder.

CONTRACT ADMINISTRATION PLAN (CAP)
FOR FIXED PRICE CONTRACTS

In order to expedite the administration of this contract, the following delineation of duties is provided. The names, addresses and phone numbers for these offices or individuals are included elsewhere in the contract award document. The office or individual designated as having responsibility should be contacted for any questions, clarifications, or information regarding the administration function assigned.

1. The Procuring Contract Office (PCO) is responsible for:

a. All pre-award duties such as solicitation, negotiation and award of contracts.
b. Any information or questions during the pre-award stage of the procurement.
c. Freedom of Information inquiries.
d. Changes in contract terms and/or conditions.
e. Post award conference.

2. The Contract Administration Office (CAO) is responsible for matters specified in the FAR 42.302 and DFARS 42.302 except those areas otherwise designated as the responsibility of the Contracting Officer's Representative (COR) or someone else herein.

3. The paying office is responsible for making payment of proper invoices after acceptance is documented.

4. The contracting Officer's Representative (COR) is responsible for interface with the contractor and performance of duties such as those set forth below. It is emphasized that only the PCO/CAO has the authority to modify the terms of the contract. In no event will any understanding, agreement, modification, change order, or other matter deviating from the terms of the basic contract between the contractor and any other person be effective or binding on the Government. If in the opinion of the contractor an effort outside the scope of the contract is requested, the contractor shall promptly notify the PCO in writing. No action may be taken by the contractor unless the PCO or CAO has issued a contractual change. The COR duties are as follows:

a. Technical Interface

(1) The COR is responsible for all Government technical interface concerning the contractor and furnishing technical instructions to the contractor. These instructions may include: technical advice/recommendations/clarifications of specific details relating technical aspects of contract requirements; milestones to be met within the general terms of the contract or specific subtasks of the contract; or, any other interface of a technical nature necessary for the contractor to perform the work specified in the contract. The COR is the point of contact through whom the contractor can relay questions and problems of a technical nature to the PCO.

(2) The COR is prohibited from issuing any instruction which would constitute a contractual change. The COR shall not instruct the contractor how to perform. If there is any doubt whether technical instructions contemplated fall within the scope of work, contact the PCO for guidance before transmitting the instructions to the contractor.

b. Contract Surveillance

(1) The COR shall monitor the contractor's performance and progress under the contract. In performing contract surveillance duties, the COR should exercise extreme care to ensure that he/she does not cross the line of personal services. The COR must be able to distinguish between surveillance (which is proper and necessary) and supervision (which is not permitted). Surveillance becomes supervision when you go beyond enforcing the terms of the contract. If the contractor is directed to perform the contract services in a specific manner, the line is being crossed.
In such a situation, the COR's actions would be equivalent to using the contractor's personnel as if they were government employees and would constitute transforming the contract into one for personal services.

(2) The COR shall monitor contractor performance to see that inefficient or wasteful methods are not being used. If such practices are observed, the COR is responsible for taking reasonable and timely action to alert the contractor and the PCO to the situation.

(3) The COR will take timely action to alert the PCO to any potential performance problems. If performance schedule slippage is detected, the COR should determine the factors causing the delay and report them to the PCO, along with the contractor's proposed actions to eliminate or overcome these factors and recover the slippage. Once a recovery plan has been put in place, the COR is responsible for monitoring the recovery and keeping the PCO advised of progress.

(4) If the Contractor Performance Assessment Reporting System (CPARS) is applicable to the contract you are responsible for completing a Contractor Performance Assessment Report (CPAR) in the CPARS Automated Information System (AIS). The initial CPAR, under an eligible contract, must reflect evaluation of at least 180 days of contractor performance. The completed CPAR, including contractor comments if any, (NOTE: contractors are allowed 30 days to input their comments) should be available in the CPARS AIS for reviewing official (PCO) review no later than 270 days after start of contract performance. Subsequent CPARs covering any contract option periods should be ready at 1-year intervals thereafter.

c. Invoice Review and Approval/Inspection and Acceptance

(1) The COR is responsible for quality assurance of services performed and acceptance of the services or deliverables. The COR shall expeditiously review copies of the contractor's invoices or vouchers, certificate of performance and all other supporting documentation to determine the reasonableness of the billing. In making this determination, the COR must take into consideration all documentary information available and any information developed from personal observations.
(2) The COR must indicate either complete or partial concurrence with the contractor's invoice/voucher by executing the applicable certificate of performance furnished by the contractor. The COR must be cognizant of the invoicing procedures and prompt payment due dates detailed elsewhere in the contract.
(3) The COR will provide the PCO and the CAO with copies of acceptance documents such as Certificates of Performance.

(4) The COR shall work with the Contractor to obtain and execute a final invoice no more than 60 days after completion of contract performance. The COR shall ensure that the invoice is clearly marked as a "Final Invoice."
d. Contract Modifications. The COR is responsible for developing the statement of work for change orders or modifications and for preparing an independent government cost estimate of the effort described in the proposed statement of work.

e. Administrative Duties

(1) The COR shall take appropriate action on technical correspondence pertaining to the contract and for maintaining files on each contract. This includes all modifications, government cost estimates, contractor invoices/vouchers, certificates of performance, DD 250 forms and contractor's status reports.
(2) The COR shall maintain files on all correspondence relating to contractor performance, whether satisfactory or unsatisfactory, and on trip reports for all government personnel visiting the contractor's place of business for the purpose of discussing the contract.
(3) The COR must take prompt action to provide the PCO with any contractor or technical code request for change, deviation or waiver, along with any supporting analysis or other required documentation.

f. Government Furnished Property. When government property is to be furnished to the contractor, the COR will take the necessary steps to insure that it is furnished in a timely fashion and in proper condition for use. The COR will maintain adequate records to ensure that property furnished is returned and/or that material has been consumed in the performance of work.

Enclosure (1)

g. Security. The COR is responsible for ensuring that any applicable security requirements are strictly adhered to.

h. Standards of Conduct. The COR is responsible for reading and complying with all applicable agency standards of conduct and conflict of interest instructions.

i. Written Report/Contract Completion Statement.

(1) The COR is responsible for timely preparation and submission to the PCO, of a written, annual evaluation of the contractors performance. The report shall be submitted within 30 days prior to the exercise of any contract option and 60 days after contract completion. The report shall include a written statement that services were received in accordance

with the Contract terms and that the contract is now available for close-out. The report shall also include a statement as to the use made of any deliverables furnished by the contractor.

(2) If the Contractor Performance Assessment Reporting System (CPARS) is applicable to the contract you are responsible for completing a final Contractor Performance Assessment Report (CPAR) in the CPARS with 30 days of contract completion.

(3) The COR is responsible for providing necessary assistance to the Contracting Officer in performing Contract Close-out in accordance with FAR 4.804, Closeout of Contract Files.

5. The Technical Assistant (TA), if appointed, is responsible for providing routine administration and monitoring assistance to the COR. The TA does not have the authority to provide any technical direction or clarification to the contract. Duties that may be performed by the TA are as follows:

a. Identify contractor deficiencies to the COR.

b. Review contract deliverables, recommend acceptance/rejection, and provide the COR with documentation to support the recommendation.

c. Assist in preparing the final report on contractor performance for the applicable contract in accordance with the format and procedures prescribed by the COR.

d. Identify contract noncompliance with reporting requirements to the COR.

e. Review contractor status and progress reports, identify deficiencies to the COR, and provide the COR with recommendations regarding acceptance, rejection, and/or Government technical clarification requests.

f. Review invoices and provide the COR with recommendations to facilitate COR certification of the invoice.

g. Provide the COR with timely input regarding technical clarifications for the statement of work, possible technical direction to provide the contractor, and recommend corrective actions.

h. Provide detailed written reports of any trip, meeting, or conversation to the COR subsequent to any interface between the TA and contractor.

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at https://www.sam.gov; and

(2) Be registered to use WAWF at https://wawf.eb.mil/ following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at https://wawf.eb.mil/

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

<u>N/A</u>

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

<u>Invoice 2 in 1</u>

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	*Data to be entered in WAWF*
Pay Official DoDAAC	<u>To be completed in task orders.</u>
Issue By DoDAAC	____
Admin DoDAAC	____
Inspect By DoDAAC	____
Ship To Code	____
Ship From Code	____
Mark For Code	____

Service Approver (DoDAAC)	____
Service Acceptor (DoDAAC)	____
Accept at Other DoDAAC	____
LPO DoDAAC	____
DCAA Auditor DoDAAC	____
Other DoDAAC(s)	____

*(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")*

*(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)*

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

Tim Burrows (757) 457-6563 timothy.r.burrows.civ@us.navy.mil

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Section H - Special Contract Requirements

Continuation of Accounting and Appropriation Data

(a) The Contracting Officer hereby designates the following individual as Contracting Officer's Representative(s)(COR) for this contract:

Timothy R. Burrows

NIPR: timothy.r.burrows.civ@us.navy.mil

Office#: (757) 457-6563

CONTRACT ADMINISTRATION APPOINTMENTS AND DUTIES (SEP 2015)

In order to expedite administration of this contract/order, the following delineation of duties is provided including the names, addresses and phone numbers for each individual or office as specified. The individual/position designated as having responsibility should be contacted for any questions, clarifications or information regarding the functions assigned.

1. PROCURING CONTRACTING OFFICER (PCO) is responsible for:\

a. All pre-award information, questions, or data;
b. Freedom of lnformation inquiries;
c. Change/question/information regarding the scope, terms or conditions of the basic contract document; and/or
d. Arranging the post award conference (See FAR 42.503).

Name: Carlton Walton

Address: 1968 Gilbert Street, Suite 600 Norfolk, VA 23511-3392

Phone:564-230-2997

2. CONTRACT ADMINISTRATION OFFICE (CAO) is responsible for matters specified in FAR 42.302 and DFARS 242.302 except in those areas otherwise designated herein.

Name: Carlton Walton

Address: 1968 Gilbert Street, Suite 600 Norfolk, VA 23511-3392

Phone:564-230-2997

3. DEFENSE CONTRACT AUDIT AGENCY (DCAA) is responsible for audit verification/provisional approval of invoices and final audit of the contract prior to final payment to the contractor.\

Not Applicable

4. PAYING OFFICE is responsible for payment of proper invoices after acceptance is documented.

Name:DFAS

Address: Cleveland, OH 44199

Phone:N/A

5. CONTRACTING OFFICERS REPRESENTATIVE (COR) is responsible for:

a. Liaison with personnel at the Government installation and the contractor personnel on site;
b. Technical advice/recommendations/clarification on the statement of work;
c. The statement of work for delivery/task orders placed under this contract.
d. An independent government estimate of the effort described in the definitized statement of work;
e. Quality assurance of services performed and acceptance of the services or deliverables;
f. Government furnished property;
g. Security requirements on Government installation;
h. Providing the PCO or his designated Ordering Officer with appropriate funds for issuance of the Delivery/Task order; and/ or

i. Certification of invoice for payment.

NOTE: When, in the opinion of the Contractor, the COR requests effort outside the existing scope of the contract (or delivery/task order), the Contractor shall promptly notify the Contracting Officer (or Ordering Officer) in writing. No action shall be taken by the contractor under such direction until the Contracting Officer has issued a modification to the contract or, in the case of a delivery/task order, until the Ordering Officer has issued a modification of the delivery/task order; or until the issue has otherwise been resolved. THE COR IS NOT AN ADMINISTRATIVE CONTRACTING OFFICER AND DOES NOT HAVE THE AUTHORITY TO DIRECT THE ACCOMPLISHMENT OF EFFORT WHICH IS BEYOND THE SCOPE OF THE STATEMENT OF WORK IN THE CONTRACT OR DELIVERY/TASK ORDER.

COR Name: Timothy R. Burrows
Email: timothy.r.burrows.civ@us.navy.mil
Office#: (757) 457-6563

In the event that the COR named above is absent due to leave, illness, or official business, all responsibilities and functions assigned to the COR will be the responsibility of the alternate COR listed below:

Not Applicable

6. TECHNICAL ASSISTANT, if assigned by the requiring activity, is responsible for providing technical assistance and support to the COR in contract administration by:

a. Identifying contractor deficiencies to the COR;
b. Reviewing contract/delivery/task order deliverables and recommending acceptance/rejection of deliverables;
c. Identifying contractor noncompliance of reporting requirements;
d. Evaluating contractor proposals for specific contracts/orders and identifying areas of concern affecting negotiations;
e. Reviewing contractor reports providing recommendations for acceptance/rejection;
f. Reviewing invoices for appropriateness of costs and providing recommendations to facilitate certification of the mvmce;

g. Providing COR with timely input regarding the SOW, technical direction to the contractor and recommending corrective actions; and

h. Providing written reports to the COR as required concerning trips, meetings or conversations with the contractor.

Not Applicable

REIMBURSEMENT OF TRAVEL COST (SEP 2015)

(a) Travel

(1) Area of Travel. Performance under this contract may require travel by contractor personnel. If travel, domestic or overseas, is required, the contractor is responsible for making all needed arrangements for his personnel. This includes but is not limited to the following:

Security Clearances
Passports, visas, etc.
Immunization
Medical Examinations

All contractor personnel required to perform work on any U.S. Navy vessel will have to obtain boarding authorization from the Commanding Officer of the vessel prior to boarding.

(2) Travel Policy. The Government will reimburse the contractor for allowable travel costs incurred by the contractor in performance of the contract and determined to be in accordance with FAR subpart 31.2, subject to the following provisions: Travel required for tasks assigned under this contract shall be governed in accordance with rules set forth for temporary duty travel in FAR 31.205-46.

(3) Travel. Travel, subsistence, and associated labor charges for travel time are authorized, whenever a task assignment requires work to be accomplished at a temporary alternate worksite. Travel performed for personal convenience and daily travel to and from work at contractor's facility will not be reimbursed.
(4) Per Diem. Per Diem for travel on work assigned under this contract will be reimbursed to employees consistent with company policy, but not to exceed the amount authorized in the Department of Defense Joint Travel Regulations.

(5) Shipboard Stays. Whenever work assignments require temporary duty aboard a Government ship, the contractor will be reimbursed at the per diem rates identified in paragraphs C8101.2C or C81181.3B(6) of the DOD Joint Travel Regulations, Volume 2.

(6) Air/Rail Travel. In rendering the services, the contractor shall be reimbursed for the actual costs of transportation incurred by its personnel not to exceed the cost of tourist class rail, or plane fare, to the extent that such transportation is necessary for the performance of the services hereunder and is authorized by the Ordering Officer. Such authorization by the Ordering Officer shall be indicated in the order or in some other suitable written form.

NOTE: To the maximum extent practicable without the impairment of the effectiveness of the mission, transportation shall be tourist class. In the event that only first class travel is available, it will be allowed, provided justification therefore is fully documented and warranted.

(7) Private Automobile. The use of privately owned conveyance within the continental United States by the traveler will be reimbursed to the contractor at the mileage rate allowed by Joint Travel Regulations. Authorization for the use of privately owned conveyance shall be indicated on the order. Distances traveled between points shall be shown in standard highway mileage guides. Any deviations from distance shown in such standard mileage guides shall be explained by the traveler on his expense sheet.

(8) Car Rental. The contractor shall be entitled to reimbursement for car rental, exclusive of mileage charges, as authorized by each order, when the services are required to be performed outside the normal commuting distance from the contractor's facilities. Car rental for TDY teams will be limited to a rate of one car for every four (4) persons on TDY at one site.

Section I - Contract Clauses

FAR 52.232-18 ADDENDUM

Pursuant to FAR clause 52.232-18, funds are not presently available for this contract. The Government's obligation under this contract is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise until funds are made available to the Contracting Officer for this contract. The notice of availability of funds can be found at the following: https://www.navsup.navy.mil/public/navsup/flcn /contracting/

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-3	Gratuities.	Apr 1984		
52.203-6	Restrictions on Subcontractor Sales to the Government. (Alternate I)	Jun 2020	Alternate I	Nov 2021
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan 2011		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards. (Deviation 2026-O0038)	Feb 2026		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	Feb 2026		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038)	Feb 2026		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters. (Deviation 2026-O0038)	Feb 2026		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	Feb 2026		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038)	Feb 2026		
52.219-6	Notice of Total Small Business Set-Aside. (Deviation 2026-O0038)	Feb 2026		
52.219-8	Utilization of Small Business Concerns. (Deviation 2026-O0038)	Feb 2026		
52.219-9	Small Business Subcontracting Plan. (Deviation 2026-O0038)	Feb 2026		
52.222-3	Convict Labor. (Deviation 2026-O0038)	Feb 2026		
52.222-35	Equal Opportunity for Veterans. (Deviation 2026-O0038)	Feb 2026		
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation 2026-O0038)	Feb 2026		
52.222-37	Employment Reports on Veterans. (Deviation 2026-O0038)	Feb 2026		
52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (Deviation 2026-O0038)	Feb 2026		
52.222-41	Service Contract Labor Standards. (Deviation 2026-O0038)	Feb 2026		
52.222-44	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment. (Deviation 2026-O0038)	Feb 2026		
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	Feb 2026		
52.222-54	Employment Eligibility Verification. (Deviation 2026-O0038)	Feb 2026		
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026. (Deviation 2026-O0038)	Feb 2026		
52.222-62	Paid Sick Leave Under Executive Order 13706. (Deviation 2026-O0038)	Feb 2026		
52.223-5	Pollution Prevention and Right-to-Know Information.	May 2024		
52.223-23	Sustainable Products. (Deviation 2026-O0038)	Feb 2026		
52.224-3	Privacy Training.	Jan 2017		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.229-12	Tax on Certain Foreign Procurements.	Feb 2021		
52.232-18	Availability of Funds.	Apr 1984		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-3	Protest after Award. (Deviation 2026-O0038)	Feb 2026		
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	Feb 2026		
52.237-2	Protection of Government Buildings, Equipment, and Vegetation.	Apr 1984		
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	Feb 2026		
52.240-92	Security Requirements. (Deviation 2026-O0038)	Feb 2026		
52.242-5	Payments to Small Business Subcontractors.	Jan 2017		
52.242-13	Bankruptcy.	Jul 1995		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	May 2024	Deviation 2024-O0013	May 2024
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support.	Jan 2023		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7022	Expediting Contract Closeout.	May 2021		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.222-7006	Restrictions on the Use of Mandatory Arbitration Agreements.	Jan 2023		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.225-7052	Restriction on the Acquisition of Certain Magnets, Tantalum, and Tungsten.	May 2024		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.225-7972	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023		
252.226-7003	Drug-Free Work Force.	Aug 2024		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.212-5	**Contract Terms and Conditions Required to Implement Statutes or Executive Orders - Commercial Products and Commercial Services. (DEVIATION 2025-O0003 and 2025-O0004)**	**(Mar 2025)**	**Deviation 2025-O0004**	**(Mar 2025)**

CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAR 2025) (DEVIATION 2025-O0003 AND 2025-O0004)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[*Contracting Officer check as appropriate*.]

☑ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with *Alternate I* (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

☑ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509)).

☑ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

☐ (4) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community-see FAR 3.900(a).

☑ (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

☐ (6) [Reserved].

☐ (7) 52.204-14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

☐ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

☑ (9) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

☐ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders-Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) (Pub. L. 115-390, title II).

☐ (11)

(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

☐ (ii) Alternate I (DEC 2023) of 52.204-30.

☑ (12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) (31 U.S.C. 6101 note).

☑ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).

☐ (14) [Reserved].

☐ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) (15 U.S.C. 657a).

☐ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

☐ (17) [Reserved]

☐ (18)

(i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (MAR 2020) of 52.219-6.

☐ (19)

(i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (MAR 2020) of 52.219-7.

☑ (20) 52.219-8, Utilization of Small Business Concerns (JAN 2025)(15 U.S.C. 637(d)(2) and (3)).

☐ (21)

(i) 52.219-9, Small Business Subcontracting Plan (JAN 2025) (15 U.S.C. 637(d)(4)).

☐ (ii) Alternate I (NOV 2016) of 52.219-9.

☐ (iii) Alternate II (NOV 2016) of 52.219-9.

☐ (iv) Alternate III (JUN 2020) of 52.219-9.

☐ (v) Alternate IV (JAN 2025) of 52.219-9.

☐ (22)

(i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).

☐ (ii) Alternate I (MAR 2020) of 52.219-13.

☑ (23) 52.219-14, Limitations on Subcontracting (OCT 2022) (15 U.S.C. 657s).

☐ (24) 52.219-16, Liquidated Damages-Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).

☑ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C. 657f).

☑ (26)

(i) 52.219-28, Postaward Small Business Program Rerepresentation (JAN 2025) (15 U.S.C. 632(a)(2)).

☐ (ii) Alternate I (MAR 2020) of 52.219-28.

☐ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).

☐ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).

☐ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).

☐ (30) 52.219-33, Nonmanufacturer Rule (SEP 2021) (15 U.S.C. 637(a)(17)).

☑ (31) 52.222-3, Convict Labor (JUN 2003) (E.O.11755).

☐ (32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (JAN 2025)(E.O. 13126).

☐ (33) [Reserved]

☐ (34) [Reserved]

☑ (35)

(i) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

☐ (ii) Alternate I (JUL 2014) of 52.222-35.

☑ (36)

(i) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

☐ (ii) Alternate I (JUL 2014) of 52.222-36.

☑ (37) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

☑ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).

☑ (39)

(i) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).

☐ (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

☐ (40) 52.222-54, Employment Eligibility Verification (JAN 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

☐ (41)

(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

☐ (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

☐ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) (42 U.S.C. 7671, *et seq.*).

☐ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) (42 U.S.C. 7671, *et seq.*).

☐ (44) 52.223-20, Aerosols (MAY 2024) (42 U.S.C. 7671, *et seq.*).

☐ (45) 52.223-21, Foams (MAY 2024) (42 U.S.C. 7671, *et seq.*).

☐ (46) 52.223-23, Sustainable Products and Services (MAR 2025) (DEVIATION 2025-O0004)) (7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).

☑ (47)

(i) 52.224-3 Privacy Training (JAN 2017) (5 U.S.C. 552 a).

☐ (ii) Alternate I (JAN 2017) of 52.224-3.

☐ (48)

(i) 52.225-1, Buy American-Supplies (OCT 2022) (41 U.S.C. chapter 83).

☐ (ii) Alternate I (OCT 2022) of 52.225-1.

☐ (49)

(i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.

☐ (ii) Alternate I [Reserved].

☐ (iii) Alternate II (JAN 2025) of 52.225-3.

☐ (iv) Alternate III (FEB 2024) of 52.225-3.

☐ (v) Alternate IV (Oct 2022) of 52.225-3.

☐ (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note).

☑ (51) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

☐ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

☐ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).

☐ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).

☑ (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) (E.O. 13513).

☐ (56) 52.229-12, Tax on Certain Foreign Procurements (FEB 2021).

☐ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

☐ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

☐ (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (OCT2018) (31 U.S.C. 3332).

☐ (60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).

☐ (61) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).

☐ (62) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).

☑ (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

☐ (64) 52.242-5, Payments to Small Business Subcontractors (JAN 2017) (15 U.S.C. 637(d)(13)).

☐ (65)

(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

☐ (ii) Alternate I (APR 2003) of 52.247-64.

☐ (iii) Alternate II (NOV 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[*Contracting Officer check as appropriate.*]

☑ (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter67).

☑ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☑ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☐ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29U.S.C.206 and 41 U.S. C. chapter 67).

☐ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

☐ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).

☑ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

☑ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

☐ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

☐ (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (JAN 2025) (49 U.S.C. 40118(g)).

(d) *Comptroller General Examination of Record*. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)
(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)
(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

(B) Alternate I (DEC 2023) of 52.204-30.

(viii) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) [Reserved]

(x) [Reserved]

(xi) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

(xvi)
(A) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O 13627).

(B) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (JAN 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

(xxii)
(A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (JAN 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

52.219-14 Limitations on Subcontracting. (Deviation 2026-O0038) (Feb 2026)

LIMITATIONS ON SUBCONTRACTING (FEB 2026) (DEVIATION 2026-O0038)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) *Definition. Similarly situated entity*, as used in this clause, means a first-tier subcontractor, including an independent contractor, that-

(1) Has the same small business program status as that which qualified the prime contractor for the award (*e.g.*, for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) *Applicability.* This clause applies only to-

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with sections 19.105, 19.106, 19.107, and 19.108;

(4) Orders expected to exceed the simplified acquisition threshold and that are set aside for small business concerns under multiple-award contracts, as described in 8.4 and 16.5;

(5) Orders, regardless of dollar value, that are set aside in accordance with sections 19.105, 19.106, 19.107, and 19.108 under multiple-award contracts, as described in 8.4 and 16.5; and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) *Independent contractors.* An independent contractor shall be considered a subcontractor.

(e) By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for-

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause-

[*Contracting Officer check as appropriate.*]

☑ By the end of the base term of the contract and then by the end of each subsequent option period; or

☐ By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protégé and its mentor approved by the Small Business Administration, the small business protégé shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protégé in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.219-28 Postaward Small Business Program Rerepresentation. (Deviation 2026-O0038) (Feb 2026)

POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (FEB 2026) (DEVIATION 2026-O0038)

(a) *Definitions*. As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at https://www.sba.gov/document/support--table-size-standards.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under ____NAICS Code assigned to ____contract number.

(2) [*Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause*.] The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program*. The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: __.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture*. The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: __ .]

(5) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program*. The Contractor represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: __.]

(6) *HUBZone joint venture eligible under the HUBZone Program.*[*Complete only if the offeror is a HUBZone small business concern.*] The offeror represents, as part of its offer, that It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: .] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. [____Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.222-42 Statement of Equivalent Rates for Federal Hires. (May 2014)

STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES (MAY 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C.5341 or 5332.

This Statement is for Information Only: It is not a Wage Determination

Employee Class	Monetary Wage-Fringe Benefits
30086 Engineering Tech VI/ Senior Statistician	GS-11 39.40%
3084 Engineering Tech V/ Junior Statistician	*GS-9 39.40%*
01270 Production Control Clerk/ Program	*GS-6 39.40%*
13013 Exhibits Specialist III/ Senior Test Design Specialist	*GS-9 39.40%*
13012 Exhibits Specialist II/ Junior Test Design Specialist	*GS-7 39.40%*
____	____
____	____

(End of clause)

52.252-2 Clauses Incorporated by Reference. (Feb 1998)

CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52 https://www/acq.osd.mil/dpap/dars/dfars_far_overhaul_class_deviations.htm ____[Insert one or more Internet addresses]

(End of clause)

52.252-6 Authorized Deviations in Clauses. (Nov 2020)

AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any DFARS and 48 CFR [insert regulation name] (48 CFR 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.232-7007 Limitation of Government's Obligation. (Apr 2014)

LIMITATION OF GOVERNMENT'S OBLIGATION (APR 2014)

(a) Contract line item(s) ____*[Contracting Officer insert after negotiations]* is/are incrementally funded. For this/these item(s), the sum of $ ____ *[Contracting Officer insert after negotiations]* of the total price is presently available for payment and allotted to this contract. An allotment schedule is set forth in paragraph (j) of this clause.

(b) For item(s) identified in paragraph (a) of this clause, the Contractor agrees to perform up to the point at which the total amount payable by the Government, including reimbursement in the event of termination of those item(s) for the Government's convenience, approximates the total amount currently allotted to the contract. The Contractor is not authorized to continue work on those item(s) beyond that point. The Government will not be obligated in any event to reimburse the Contractor in excess of the amount allotted to the contract for those item(s) regardless of anything to the contrary in the clause entitled "Termination for Convenience of the Government." As used in this clause, the total amount payable by the Government in the event of termination of applicable contract line item(s) for convenience includes costs, profit, and estimated termination settlement costs for those item(s).

(c) Notwithstanding the dates specified in the allotment schedule in paragraph (j) of this clause, the Contractor will notify the Contracting Officer in writing at least ninety days prior to the date when, in the Contractor's best judgment, the work will reach the point at which the total amount payable by the Government, including any cost for termination for convenience, will approximate 85 percent of the total amount then allotted to the contract for performance of the applicable item(s). The notification will state (1) the estimated date when that point will be reached and (2) an estimate of additional funding, if any, needed to continue performance of applicable line items up to the next scheduled date for allotment of funds identified in paragraph (j) of this clause, or to a mutually agreed upon substitute date. The notification will also advise the Contracting Officer of the estimated amount of additional funds that will be required for the timely performance of the item(s) funded pursuant to this clause, for a subsequent period as may be specified in the allotment schedule in paragraph (j) of this clause or otherwise agreed to by the parties. If after such notification additional funds are not allotted by the date identified in the Contractor's notification, or by an agreed substitute date, the Contracting Officer will terminate any item(s) for which additional funds have not been allotted, pursuant to the clause of this contract entitled "Termination for Convenience of the Government."

(d) When additional funds are allotted for continued performance of the contract line item(s) identified in paragraph (a) of this clause, the parties will agree as to the period of contract performance which will be covered by the funds. The provisions of paragraphs (b) through (d) of this clause will apply in like manner to the additional allotted funds and agreed substitute date, and the contract will be modified accordingly.

(e) If, solely by reason of failure of the Government to allot additional funds, by the dates indicated below, in amounts sufficient for timely performance of the contract line item(s) identified in paragraph (a) of this clause, the Contractor incurs additional costs or is delayed in the performance of the work under this contract and if additional funds are allotted, an equitable adjustment will be made in the price or prices (including appropriate target, billing, and ceiling prices where applicable) of the item(s), or in the time of delivery, or both. Failure to agree to any such equitable adjustment hereunder will be a dispute concerning a question of fact within the meaning of the clause entitled "Disputes."

(f) The Government may at any time prior to termination allot additional funds for the performance of the contract line item(s) identified in paragraph (a) of this clause.

(g) The termination provisions of this clause do not limit the rights of the Government under the clause entitled "Default." The provisions of this clause are limited to the work and allotment of funds for the contract line item(s) set forth in paragraph (a) of this clause. This clause no longer applies once the contract is fully funded except with regard to the rights or obligations of the parties concerning equitable adjustments negotiated under paragraphs (d) and (e) of this clause.

(h) Nothing in this clause affects the right of the Government to terminate this contract pursuant to the clause of this contract entitled "Termination for Convenience of the Government."

(i) Nothing in this clause shall be construed as authorization of voluntary services whose acceptance is otherwise prohibited under 31 U.S.C. 1342.

(j) The parties contemplate that the Government will allot funds to this contract in accordance with the following schedule:

On execution of contract	$ ____
(month) (day), (year) ____	$ ____
(month) (day), (year) ____	$ ____
(month) (day), (year) ____	$ ____

(End of clause)

Section J - List of Attachments

Attachment Number	File Name	Description
1	Performance Work Statement	PWS
2	Draft TS_SCI DD254.pdf	Draft DD254
3	Past Performance Report Form	PPRF
4	Past Performance Information Form	PPIF

Section K - Representations, Certification, & Other Statements

The requirement for Annual Representation and Certifications at 52.204-8 applies at the basic multiple award contract (MAC) level for each Offeror. Offerors are not required to submit representation or certifications in response to this solicitation or its subsequent task order award, if any. All requests for representation or representation shall come from the MAC Contracting Officer in accordance with the terms of the basic contract. The Ordering Officer will consider offeror's size/socioeconomic status as defined within the SeaPort-NxG portal at the following web address: https://auction.seaport.nayy.mil/Bid/PPContractListing.aspx.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	Sep 2024		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-O0038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		
252.225-7973	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems###Representation. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024

FAR Clauses Incorporated by Full Text

52.209-7 Information Regarding Responsibility Matters. (Deviation 2026-O0038) (Feb 2026)

INFORMATION REGARDING RESPONSIBILITY MATTERS (FEB 2026) (DEVIATION 2026-O0038)

(a) *Definitions*. As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than $10,000,000 means-

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than $10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of $5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in-

(A) The payment of a monetary fine or penalty of $5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of $100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via https://www.sam.gov (see 52.204-7).

(End of provision)

52.229-11 Tax on Certain Foreign Procurements-Notice and Representation. (Jun 2020)

TAX ON CERTAIN FOREIGN PROCUREMENTS-NOTICE AND REPRESENTATION (JUN 2020)

(a) *Definitions*. As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [*Offeror must select one*] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to https://www.irs.gov/help/tax-law-questions.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions*. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition*. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at *https://www.sam.gov* for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation*. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures*. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

Addendum to FAR 52.212-1 Instructions to Offerors--Commercial Products and Commercial Services

The Government intends to award a single Firm-Fixed-Price (FFP), task order contract resulting from this solicitation in accordance with FAR Subpart 16.5. Award will be made to that offeror whose proposal is most advantageous to the Government under the selection criteria set forth in this solicitation. The Government intends to evaluate proposals and award a contract based on initial proposals. Therefore, the offeror's initial proposal should contain the offeror's best terms from a non-price and price standpoint. However, the Government may contact any or all offerors with questions concerning their responses. The Government reserves the right to award a contract to other than the lowest priced offeror; award a contract without exchanges; or award a contract after exchanges, whichever is in the best interest of the Government.

Offerors are hereby instructed that, regardless of any language that may be used in this solicitation, the Government is NOT conducting this procurement under FAR Part 15. This procurement is being conducted under FAR subpart 16.505.

QUESTIONS: Offerors may submit questions regarding clarification of solicitation requirements to Kelley Nevelsteen **via e-mail at kelley.j.nevelsteen.civ@us.navy.mil**. It is required that all questions shall be received by **1200 pm Eastern Time (ET), 08 May 2026**, as time may not permit responses to questions received after that date to be prepared and issued prior to the receipt of proposals.

FOR SUBMISSION OF PROPOSALS:

(1) Proposals shall be submitted electronically no later than the due date of the solicitation via e-mail to Kelley Nevelsteen **at kelley.j.nevelsteen.civ@us. navy.mil**. Offerors shall comply with the detailed instructions for the format and content of the proposals contained in the solicitation; proposals that do not comply may be considered unacceptable and may render the proposal ineligible for award. All electronic files and versions of offerors proposals shall be compatible with the current release of Microsoft Office Suite version 2016. The offeror shall be responsible for ensuring that their electronic proposals are virus-free.

(2) Submissions are page limited to the maximum number of pages as defined below. These page limitations are inclusive of the executive summary and any charts, diagrams, and /or other graphics. Graphics (including tables) in the proposal may use an alternative font with 8 point size type or larger. Each "page" is defined as one sheet, 8 1/2 " x 11", with at least one inch margins on all sides, using a font with a point size of 10 or greater (e. g., "Times New Roman" style with 10 point font). Lines shall, at a minimum, be single-spaced in Microsoft Word with Microsoft Word Normal character spacing. Pages shall be consecutively numbered. Multiple pages, double pages, two-sided pages, or foldouts will count as an equivalent number of 8 1/2" x 11" pages. Offerors are permitted to submit no more than one page for each of the following, which will not be included in the page count: a cover sheet, list of tables, list of acronyms, list of figures, tabs, and dividers. Tables of contents and any compliance matrices may exceed one page, which will not be included in the page count.

GENERAL:

Proposals shall include the following legend on each page:

Source Selection Information See FAR 2.101 and 3.104

PROPOSAL CONTENT:

The offer should contain the following items in addition to other information required by this solicitation: The cover page should indicate the following:

- Title of the proposal
- Volume Number (I or II)
- Proposal Category (Factor/Sub-factor)
- Request for Proposal Number
- Name and Address of Offeror, CAGE Code, SAM Unique Entity ID, and applicable Tax I.D. Number
- Point of Contact name, telephone number, and email
- Proposal valid for 180 days after solicitation closing

Proposals shall be prepared in two (2) separate volumes as follows:

Volume I: Non-Price Proposal

- Factor I - Facilities Clearance
- Factor II - Technical Approach
  - o Sub-factor I: Staffing Approach
  - o Sub-factor II: Performance and Management Approach
- Factor III - Past Performance

Volume II: Price Proposal

- Factor IV - Price

Table of Contents: The table of contents should provide sufficient detail as to allow the important elements to be easily located.

1. Requirements for Style: Each offeror shall submit a proposal that clearly and concisely describes and defines the contractor's response to the requirements contained in the RFP. Unnecessary elaboration or other presentations beyond that sufficient to present a complete and effective proposal are not desired and may be construed as an indication of the offeror's lack of understanding of cost consciousness. The proposal shall contain all the pertinent information in sufficient detail in the one area of the proposal where it contributes most critically to the discussion of the same information. When necessary, the offeror shall refer to the initial discussion and identify its location within the submitted proposal. PDF documents are acceptable.

2. Proposal Page Limitations

Volume I - Non-Price Proposal - The following page limitations are established:

Title	**Page Limit***
Factor I - Facilities Clearance	No Limit
Factor II - Sub-Factor I: Staffing Approach	15 Pages
Factor II - Sub-Factor II: Performance and Management Approach	15 Pages
Factor III - Past Performance	15 Pages

Pages submitted in excess of the page limitations described above will not be evaluated.

The Facilities Clearance is not page-limited; however, the Facilities Clearance is to be strictly limited to a copy of the verification. Price Proposal information in the Services Price Worksheet shall be submitted in Microsoft Excel format.

* Page limits represent the maximum pages the Government will evaluate and are not construed as de facto standards for the amount of material expected in the proposal.

Volume II - Price Proposal - is not page limited; however, the Price Proposal is to be strictly limited to price information and completed solicitation documents as described in the General Section at the beginning of this text.

Title	**Page Limit***

Factor IV - Price	No limit

IMPORTANT NOTES:

(1) Offerors shall respond to all requirements of the solicitation document. Offerors are cautioned not to alter the solicitation. Hand-carried proposals are not authorized and will not be accepted.

(2) In the event any person who is not a bona fide employee of the offeror participated in the creation, formulation, or writing of any portion of the proposal, a certificate to this effect shall be included in the proposal which shall be signed by an officer of the offeror. Such certificate shall identify the name of the person who is not a bona fide employee, that person's employment capacity, the name of the person's firm, the relationship of that firm to the offeror, and the portion of the proposal in which the person participated.

Volume I: Non-Price Proposal

Factor I - Facilities Clearance:

The offeror shall provide verification that it possesses an active Facility Clearance (FCL) at the Top-Secret level at the time of proposal submission as identified in the PWS. The verification shall be provided via the Defense Counterintelligence and Security Agency's (DCSA) National Industrial Security System (NISS) and obtained no earlier than 30 days prior to the issuance of the solicitation. The Verification request shall include the following: Cage Code, Facility Name, Physical Location, Facility Clearance Status/Level, Status Date/Issue Date, Safeguarding Level, Authorized Access to FCL Limitation, Facility Security Officer, Facility Security Officer Phone Number, DCSA Field Office, and DSCA Officer Phone Number.

****Include as an attachment to the solicitation. There is no page limitation****

Factor II - Technical Approach:

Sub-factor I - Staffing Approach:

The offeror shall provide a staffing approach that demonstrates the offeror's ability to provide the required support services and hire and retain the appropriate mix of personnel resources with the skill set levels necessary as identified in the PWS. Specifically, offerors shall address the following:

- A proposed methodology for recruitment of personnel meeting the position-dependent experience, certifications, and qualifications delineated in **PWS Section 6;** the offeror shall detail utilization of the offeror's personnel resources and demonstrated understanding of the skill sets and labor mix required to successfully accomplish the tasks/requirements of the PWS. The offeror shall provide a staffing approach that places a fully qualified workforce available on the period of performance start date, **16 May 2026.**

- An approach to ensure personnel qualifications remain current.

- Methodology for identifying, recruiting, preparing, training, and retention of qualified personnel for performance that demonstrates the offeror's plan to minimize staff turnover. The offeror should provide historical data to substantiate achievements in past recruiting efforts and sustained retention of employees/low employee turnover rates.

- Risks associated with its staffing approach and any risks associated with implementation of its approach to staffing; including a description of any techniques and actions to mitigate such risks and an explanation of whether the techniques and actions identified for risk mitigation have been successfully used by the offeror.

- The offeror shall discuss their methodology of retaining qualified candidates and reducing turnover, and shall provide their historical attrition rates for the past three (3) years for similar work.

- Offerors shall propose a labor mix that demonstrates the ability to successfully execute the full scope of the Performance Work Statement (PWS) within the annual maximum hours specified in the Services Price Worksheet.

NOTE: The above bullets provide guidance for what should be addressed in the staffing approach and are not considered to be sub-factors nor should this be considered an all-inclusive list.

Sub-factor II - Performance and Management Approach:

The offeror shall provide a performance and management approach that demonstrates an understanding of, familiarity with, and ability to perform the specific technical requirements and tasks in **PWS Sections 3, 4, and 5**, to establish that the offeror is capable of fully providing these services at the level of quality required. The offeror's approach shall provide a plan that clearly describes the management controls, techniques, and procedures that will be used to ensure required work is performed in a timely, responsive, professional, and efficient manner and clearly detail how this effort will be managed within the offeror's corporate organizational structure.

Offerors are not limited to any specific performance and management approach as long as the approach taken meets PWS requirements.

****The Technical submission is limited to 20 pages (10 pages for Staffing Approach and 10 pages for Performance and Management Approach)****

Factor III - Past Performance:

To demonstrate its past performance, the offeror shall identify up to three (3) of its most relevant contracts

performed within five (5) years of the solicitation issuance date. Those contracts must also reflect one (1) year of completed performance by the issuance date of the solicitation. Offerors shall provide a detailed explanation demonstrating the relevance of the contracts to the requirements of the solicitation.

For purposes of this solicitation, a contract is defined as a single contract or a single task order placed under an IDIQ contract, a Blanket Purchase Agreement (BPA), or a Federal Supply Schedule. Offerors shall not submit the IDIQ contract, FSS contract, or BPA itself as a reference. Offerors may submit a combination of no more than three (3) delivery orders (DOs), task orders (TOs), technical direction letters (TDLs), and/or technical area tasks (TATs) placed under an IDIQ or BPA as one of the three examples of past performance. Such a combination must also meet the requirements stated above: each individual example in the combination must have been performed within five (5) years of the solicitation issuance date and demonstrate at least one (1) year of completed performance by the issuance date of the solicitation. If a combination of DOs, TOs, TDLs and/or TATs are used as a past performance example, the offeror shall state the specific experience claimed, period of performance, and dollar value of each. A Past Performance example that does not provide the level of detail required may not be evaluated. No more than one combination of DOs, TOs, TDLs and or TATs is permitted in the past performance submittal.

If a proposed subcontractor's past performance is provided as part of the three (3) of its most relevant contracts or efforts,

the percentage and type of work to be done by the subcontractor on the solicitation requirement must be stated. The offeror's submittal shall also detail clearly the aspects of the work in the solicitation that the subcontractor is proposed to perform. A Past Performance example which does not detail clearly the aspects of the work in the solicitation that the subcontractor is proposed to perform may not be evaluated.

If the prime offeror or intended subcontractor/partner submits a past performance example in which it served as a subcontractor, the prime/sub/partner shall detail clearly the work that it performed and the magnitude (dollar value) of that subcontracted work only. A Past Performance example that does not differentiate between the overall contract effort and the subcontractor effort may not be evaluated.

The past performance of subcontractors who will be performing major or critical aspects of the solicitation will be considered as highly as a prime contractor's past performance.

Failure of offerors to provide the required information and level of specificity may result in the contract reference not being evaluated.

With respect to joint ventures, the procuring activity will consider work done individually by each member of the joint venture as well as any work done by the joint venture itself previously. Joint venture references must meet the temporal requirements described herein (within five years and a year of completed performance). Additionally, if a joint venture member submits a past performance reference, the joint venture member shall detail clearly the work that it performed in that effort and the magnitude (dollar value) of that work. A reference that does not differentiate between the overall contract effort and the joint venture member's effort for that reference may not be evaluated. The past performance of a joint venture member who will be performing major or critical aspects of the solicitation will be considered as highly as the joint venture's past performance.

The offeror shall complete a "Past Performance Information Form" for each reference submitted. The form is an attachment to the solicitation.

In addition to the information requested above, offerors shall contact their past performance references and request that each reference complete the Past Performance Report Form and e-mail the completed survey form directly to Kelley Nevelsteen at kelley.j.nevelsteen.civ@us.navy.mil by the DUE DATE OF PROPOSALS. CPARS may not be submitted in lieu of the Past Performance Report Form. The Government reserves the right to consider past performance report forms received after the due date of the solicitation and to contact references for verification or additional information.

****The Past Performance submission is limited to 12 pages.****

Volume II - Price Proposal

Factor IV - Price

In addition to the items required in the General Section above, Volume II shall include the following:

- Completed solicitation documents to include signed copies of all amendments, if applicable.

- For the purpose of preparing a price proposal, the offeror shall assume that the period of performance consists of a five-year ordering period, as well as the potential usage of FAR clause 52.217-8 (6 months), Option to Extend Services. Offerors shall use the periods established in the Schedule.

- Unless completed in SAM, "Representations, Certifications and Other Statements of Offerors" completed by the offeror.

- Complete and detailed price breakdown with all supporting documentation.

- This volume shall also include a completed Services Price Worksheet, submitted in accordance with the following instructions.

  o Separate price information shall be submitted for each year of service, as well as a total summary for the five- year ordering period, as shown in the Services Price Worksheet. Also include pricing for the potential usage of FAR clause 52.217-8, Option to Extend Services. The price for the services shown in this spreadsheet shall include all fully burdened labor required to provide services. The firm-fixed-price annual rates proposed in the pricing spreadsheet will be incorporated into the resultant contract and subsequent task orders.

- Offerors shall propose the Government-provided not-to-exceed travel amounts in their price proposals and the Services Price Worksheet. Offerors shall insert the Government estimated travel plug numbers provided in the chart below in their proposed price, in addition to any applicable General and Administrative (G&A) and/or Overhead (OH) rate in accordance with FAR Part 31 in their accounting system. Only G&A and/or OH indirect costs are allowable if an offeror's accounting system automatically applies it, no profit or fee shall be included in the travel costs.

NOTE: If no G&A and/or OH are proposed, it will be determined that the offeror does not intend to apply any applicable indirect cost to any travel required.

All price and price-supporting information shall be contained in the price proposal. No price information shall be included in any other Volume including cover letters. The offeror is responsible for submitting sufficient information to enable the Government to fully evaluate its price proposal

****The price submission is not page limited, but is strictly limited to price information.****

In order to be eligible for award, the Offeror shall be a **Small Business, under NAICS 541330 exception 2 Engineering Services- Military and Aerospace Equipment and Military Weapons.**

The completion and submission of the above items will constitute an offer (proposal) and will indicate the offeror's unconditional assent to the terms and conditions of this RFP and any attachments hereto. Alternate proposals are not authorized. Objections to any terms and conditions of the RFP will constitute deficiency, which may make the offer un-awardable.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	Jan 2017		
52.204-7	System for Award Management-Registration. (Deviation 2026-O0038)	Feb 2026		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-O0038)	Feb 2026		
52.233-2	Service of Protest. (Deviation 2026-O0038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		

FAR Clauses Incorporated by Full Text

52.252-1 Solicitation Provisions Incorporated by Reference. (Feb 1998)

SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52https://www.acq.osd.mil/dpap/dars/dfars_far_overhaul_class_deviations.html____[Insert one or more Internet addresses]

(End of provision)

52.252-5 Authorized Deviations in Provisions. (Nov 2020)

AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any DFARS and 48 CFR[insert regulation name](48 CFR Chapter2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.209-7012 Prohibition Relating to Conflicts of Interest in Consulting Services-Certification. (Oct 2025)

PROHIBITION RELATING TO CONFLICTS OF INTEREST IN CONSULTING SERVICES-CERTIFICATION (OCT 2025)

(a) *Definitions*. As used in this provision-

"Consulting services" means advisory and assistance services, except that "consulting services" does not include the provision of products or services related to-

(1) Compliance with legal, audit, accounting, tax, reporting, or other requirements of the laws and standards of countries; or

(2) Participation in a judicial, legal, or equitable dispute resolution proceeding.

"Contract oversight entity" means any of the following:

(1) The Contracting Officer.

(2) The Contracting Officer's Representative.

(3) The Defense Contract Management Agency.

(4) The Defense Contract Audit Agency.

(5) The DoD Office of Inspector General or any subcomponent of that office.

(6) The Government Accountability Office.

"Covered contract" means a DoD contract involving consulting services.

"Covered foreign entity" means any of the following:

(1) The government of the People's Republic of China, the Chinese Communist Party, the People's Liberation Army, the Ministry of State Security, or other security service or intelligence agency of the People's Republic of China.

(2) The government of the Russian Federation or any entity sanctioned by the Secretary of the Treasury under Executive Order 13662, Blocking Property of Additional Persons Contributing to the Situation in Ukraine.

(3) The government of any country, if the Secretary of State determines that such government has repeatedly provided support for acts of international terrorism, pursuant to any of the following:

(i) Section 1754(c)(1)(A) of the Export Control Reform Act of 2018 (50 U.S.C. 4318(c)(1)(A)).

(ii) Section 620A of the Foreign Assistance Act of 1961 (22 U.S.C. 2371).

(iii) Section 40 of the Arms Export Control Act (22 U.S.C. 2780).

(iv) Any other provision of law.

(4) Any entity included on any of the following lists maintained by the Department of Commerce (see the Export Administration Regulations at 15 CFR subchapter C):

(i) The Entity List in supplement no. 4 to 15 CFR part 744.

(ii) The Denied Persons List as described in 15 CFR 764.3(a)(2).

(iii) The Unverified List in supplement no. 6 to 15 CFR part 744.

(iv) The Military End User List in supplement no. 7 to 15 CFR part 744.

(5) Any entity identified by the Secretary of Defense pursuant to section 1237(b) of the National Defense Authorization Act for Fiscal Year 1999 (Pub. L. 105-261; 50 U.S.C. 1701 note).

(6) Any entity on the Non-Specially Designated Nationals Chinese Military-Industrial Complex Companies List maintained by the Office of Foreign Assets Control of the Department of the Treasury under Executive Order 14032, Addressing the Threat From Securities Investments That Finance Certain Companies of the People's Republic of China.

(b) *Prohibition*. DoD cannot award to the Offeror a contract assigned a North American Industry Classification System code beginning with 5416 if the Offeror-

(1) Cannot certify that neither the Offeror nor any of its subsidiaries or affiliates hold a contract or subcontract that involves consulting services with one or more covered foreign entities; and

(2) Does not maintain a conflict-of-interest mitigation plan as described in paragraph (d) of this provision.

(c) *Certification*. The Offeror certifies that-

(1)(i) It does ☐ does not ☐ hold a contract or subcontract that involves consulting services with one or more covered foreign entities; and

(ii) Its subsidiaries or affiliates do ☐ do not ☐ hold a contract or subcontract that involves consulting services with one or more covered foreign entities; and

(2) It does ☐ does not ☐ maintain a conflict-of-interest mitigation plan described in paragraph (d) of this provision.

(d) *Conflict-of-interest mitigation plan*. If the Offeror answered in the affirmative in paragraphs (c)(1) and (2) of this provision, then the Offeror shall submit its conflict-of-interest mitigation plan to the Contracting Officer for approval. The Offeror may contact the Contracting Officer for guidance on submitting the Offeror's conflict-of-interest mitigation plan.

(1) The Offeror's conflict-of-interest mitigation plan shall be auditable by a contract oversight entity and shall include-

(i) An identification, unless otherwise prohibited by law or regulation, of any covered contracts of the Offeror or its subsidiaries or affiliates with a covered foreign entity. If the Offeror is unable to identify one or more covered foreign entities due to confidentiality obligations, the Offeror shall identify such entities as a covered foreign entity;

(ii) A written analysis, including a course of action for avoiding, neutralizing, or mitigating the actual or potential conflict of interest of such a covered contract;

(iii) A description of the procedures by which the Offeror or its subsidiaries or affiliates will ensure that individuals who will perform the scope of a covered contract will not, for the duration of such contract, also provide any consulting services to any covered foreign entity; and

(iv) A description of the procedures by which the Offeror or its subsidiaries or affiliates will submit to the contract oversight entities a notice of an unmitigated conflict of interest with respect to a covered contract within 15 days of determining that such a conflict has arisen.

(2) The Contracting Officer will incorporate the Offeror's approved conflict-of-interest mitigation plan into any contract awarded to the Offeror resulting from this solicitation.

(End of provision)

Section M - Evaluation Factors for Award

Addendum to Evaluation - Commercial Product and Commercial Services
Addendum to 52.212-2, Evaluation--Commercial Products and Commercial Services

The Government intends to award a single Firm-Fixed-Price (FFP), task order as a result of this solicitation in accordance with FAR Subpart 16.5, Award will be made to that offeror whose proposal is most advantageous to the Government under the selection criteria set forth in this solicitation. The Government intends to evaluate proposals and award a contract based on initial proposals. Therefore, the offeror's initial proposal should contain the offeror's best terms from a non-price and price standpoint. However, the Government may contact any or all offerors with questions concerning their responses. The Government reserves the right to award a contract to other than the lowest priced offeror; award a contract without exchanges; or award a contract after exchanges, whichever is in the best interest of the Government.

The Government intends to award a FFP task order to the responsible Offeror whose proposal represents the best value after evaluation in accordance with the factors in the solicitation by utilizing the Trade-off Source Selection process. The Offeror's proposal shall be in the form prescribed by and shall contain a response to each of the areas identified in the addendum to FAR 52.212-1 of the solicitation.

The selection of an offeror for award will be conducted in two (2) phases. Phase I will consist of evaluation of Factor I - Facilities Clearance. Offers receiving an "Acceptable" rating in Phase I shall move on to Phase II. Offerors receiving a rating of "Unacceptable" for Factor I - Facilities Clearance are considered un-awardable and will not be further evaluated.

Phase II will consist of evaluation of Factor II - Technical Approach; its sub-factors: Sub-factor I - Staffing Approach and Sub-factor II - Performance and Management Approach, Factor III - Past Performance and Factor IV - Price. The evaluation of proposals that move on to Phase II will consider the Non-Price Proposal to be significantly more important than the Price Proposal. Within Phase II, Factor III is more important than Factor II. Within Factor II, the two (2) sub-factors are weighed equally.

Offerors receiving a rating of "Unacceptable" for Factor II, or any of its sub-factors, are considered un-awardable and will not be further evaluated.

Initially, proposals shall be ranked according to price (from lowest to highest), inclusive of all option pricing. An Offeror's proposed pricing will be determined by adding all extended amounts for the CLINs in RFP Section B.

If the lowest priced Offeror is evaluated to have a Factor I rated as "Acceptable", a Factor II rated as "Outstanding", and a Factor III rated as "Substantial Confidence", that Offeror represents the best value for the Government and the evaluation process stops at this point. Award shall be made to that Offeror without further consideration of any other proposals. However, if the lowest priced Offeror is not evaluated to have a Factor I rated as "Acceptable", a Factor II rated as "Outstanding", and a Factor III rated as "Substantial Confidence", the next-lowest priced Offeror will be evaluated. The evaluation process will continue (in order of price from lowest to highest) until a proposal is evaluated to have a Factor I rated as "Acceptable", a Factor II rated as "Outstanding", and a Factor III rated as "Substantial Confidence". The Government shall then make an integrated best-value award decision between that proposal rated with a Factor I rated as "Acceptable", a Factor II rated as "Outstanding", and a Factor III rated as "Substantial Confidence" and all lower priced awardable proposals

If no proposals are evaluated with a Factor I rated as "Acceptable", a Factor II rated as "Outstanding", and a Factor III rated as "Substantial Confidence", the Contracting Officer shall make an integrated assessment best-value award decision from among Offerors rated "Acceptable" and "Neutral Confidence" or better.

Although price is not the most important evaluation factor, it has the potential to become more significant during the evaluation process. The degree of importance of price will increase with the degree of equality of the proposals in relation to the other factors on which selection is to be based. The importance of price will also increase when a proposal's price is so significantly high as to diminish the value to the Government that might be gained under the other aspects of the proposal. If, at any stage of the evaluation, all offerors are determined to have submitted equal, or virtually equal, non- price proposals, price could become the factor in determining which Offeror shall receive the award.

The Government intends to award the contract without exchanges. Accordingly, each Offeror should submit its most favorable terms from a price and non-price standpoint. However, the Government reserves the right to establish a competitive range and conduct exchanges if later determined by the PCO to be necessary.

All proposals will be reviewed for timeliness. If the proposal is received after the closing date and does not meet the criteria for "late proposals" in the solicitation, the proposal will not be opened. Timely proposals will be reviewed for compliance to the solicitation. If the proposal is not compliant to the solicitation, it will not be evaluated and the Offeror will be notified that the proposal is non-responsive.

Volume I: Non-Price Proposal Evaluation Criteria

Phase I

Factor I - Facilities Clearance:

Factor I will be evaluated during Phase I and will receive a rating of "Acceptable/Unacceptable" based on its submission of the verification of its Top- Secret Facilities Clearance Level meeting the requirements as detailed in the addendum to FAR 52.212-1 of the solicitation. This will be evaluated during Phase I on an "Acceptable/Unacceptable" basis utilizing the "Acceptable/Unacceptable" rating Table below. Offerors receiving an "Acceptable" rating in Phase I will move on to Phase II. Offerors receiving an "Unacceptable" rating will be considered un-awardable and will not be further evaluated.

Phase II

Factor II - Technical Approach:

The purpose of the technical factor and sub-factors is to assess the offeror's proposed approach to satisfy
the Government's requirements. The evaluation of risk is related to the assessment of the offeror's proposed technical submittal. Risk, as it pertains to source selection, is the potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an offeror's proposed approach to achieving the technical factor involves risk of disruption of schedule, increased cost or degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance. Risk will be considered in the evaluation of the technical factor and sub-factors.

The Technical Approach factor consists of Sub-factor I, Staffing Approach and Sub-factor II, Performance and Management Approach. Sub-factors are weighted equally and will result in one Technical Approach rating detailed in the rating table identified as "Combined Technical/Risk Table 2"
. Offerors simply providing general statements or paraphrasing/ parroting the PWS in whole or in any part may receive a rating of unacceptable.

Note: A rating of "Marginal" for any factor or sub-factor means that the offeror's proposal is not awardable without a change or changes to the offeror's proposal. A proposal which includes a "Marginal" rating is not eligible for award if award is made on initial offers and will not be further evaluated unless exchanges are in the best interest of the Government. Offerors that receive a "Marginal" rating are considered to be susceptible to correction if the Contracting Officer determines that an exchange is appropriate and said exchange is conducted.

Note: Offerors receiving a rating of "Unacceptable" for any factor or sub-factor will not be considered for an award and will not be further evaluated.

Sub-factor I - Staffing Approach:

The offeror's overall staffing approach will be evaluated on its feasibility, comprehensiveness, and the degree to which the offeror demonstrates its understanding of, and capability to successfully accomplish, the staffing approach requirements listed above in the technical subfactor I in the addendum to FAR 52.212-1 of the solicitation.

Sub-factor II - Performance and Management Approach:

The offeror's proposed performance and management approach will be evaluated on feasibility, its comprehensiveness, and the degree to which the offeror demonstrates its understanding of, and capability to successfully accomplish, the performance and management approach requirements listed above in the technical sub-factor II in the addendum to

FAR 52.212-1 of the solicitation.
Factor III - Past Performance:
The past performance evaluation factor assesses the degree of confidence the Government has in an offeror's ability to meet the contract's requirements based on the quality of a demonstrated record of recent and relevant performance. There are three (3) aspects to the past performance evaluation: recency, relevancy, and quality. These are combined to establish a single performance confidence assessment rating for each offeror.
Past Performance Recency: Recency is the first aspect of the past performance evaluation and is the time
period during which past performance references are considered relevant. Recency is critical to establishing the relevancy of past performance information. For purposes of this solicitation, recent past performance is performance that has taken place within five (5) years as of the issuance date of this solicitation. Performance outside of this stated period will not be considered for evaluation purposes.
Past Performance Relevancy: Regarding relevancy, each past performance reference under each offeror's
Past Performance submission will be evaluated to determine its scope and magnitude relative to the instant requirement. The following definitions will apply to this evaluation:
- Scope: Experience in the areas described in PWS Sections 3 and 5 (including all sub-sections within PWS Sections 3 & 5).
- Magnitude: The similarity of the dollar value of actually performed work that exists between the PWS and the offeror's referenced contracts during the stated five-year period established by the solicitation.

The relevancy rating assigned to each past performance reference will be considered in determining the weight to be given to that reference in the overall Past Performance Confidence Assessment. References determined to be "Not Relevant" will not be further considered. Similarly, the quality of performance under a past performance reference that has no relevance to the instant requirement will not be considered in the overall assessment of past performance confidence. In determining the rating for the past performance factor, past performance of greater relevancy will have more influence on the past performance confidence assessment than past performance of lesser relevancy.
Past Performance Quality: The third aspect of the past performance evaluation is to establish the overall quality of the offeror's past performance. The Government will review all past performance information collected and determine the quality of the offeror's performance, including general trends and usefulness of the information, and will incorporate this into the performance confidence assessment.
Past Performance Confidence Assessment: The overall assigned rating for past performance will be the Past Performance Confidence Assessment rating, defined in the table below. The assignment of this rating will be based on the overall quality of the recent and relevant past performance and will also consider the source of the information, the context of the data, and general trends in the offeror's performance. The quality of performance under a past performance reference that has no relevance to the instant requirement will not be considered in the overall assessment of past performance confidence. Evaluation will focus only on work already performed. Work yet-to-be performed and work not reflecting one year of completed performance by the solicitation issuance date will not be considered.
If the offeror's past performance is determined to be "Not Relevant" as defined in the solicitation, then the quality of the offeror's past performance will not be evaluated through a confidence assessment, and the past performance factor will be rated as "Neutral Confidence." If an offeror's past performance is determined to be relevant, then each past performance reference under the offeror's past performance submission that contributed to the determination of relevance (i.e., each reference that is rated at least somewhat relevant) will be evaluated to determine the quality of the offeror's performance under that reference. The quality of performance on contract references that are rated "Not Relevant" is not evaluated even when the overall past performance is found to be "Relevant."
In the case of offerors for which there is no information on past contract performance or where past contract performance information is not available, the offeror may not be evaluated favorably or unfavorably on the past performance factor. In this case, the offeror's past performance is "Unknown" and assigned a performance confidence rating of "Neutral Confidence." Although an offeror that lacks recent, relevant past performance may not be rated favorably or unfavorably with regard to past performance, the Government may determine that a "Substantial Confidence" or "Satisfactory Confidence" past performance rating provides better value to the Government than a "Neutral Confidence" past performance rating.
In order to evaluate Past Performance, the Government may also utilize existing data sources, including the Contractor Performance Assessment Reporting System (CPARS), the System of Award Management (SAM), the Electronic Subcontract Reporting System (eSRS) or other databases; communication with points of contact in the offeror's customer's organization, which could include private sector requirements and contracts personnel, Administrative Contracting Officers, Defense Contract Performance and Management Agency (DCMA) personnel, Procuring Contracting Officers, Contracting Officer's Representatives, and other Government activity requirements personnel. The Government may verify past performance information. The Government may contact some or all of the references provided, as appropriate, and may collect information through questionnaires, telephone interviews, and existing data sources. The Government reserves the right to obtain information for use in the evaluation of past performance from any and all sources, including sources outside of the Government. This information will be used for the evaluation of past performance.
The past performance factor evaluation and past performance confidence assessment rating is separate and distinct from the contracting officer's responsibility determination. The assessment of the offeror's past performance will be used as a means of evaluating the relative capability of the offeror and other competitors to successfully meet the requirements of the solicitation.
NOTE: A rating of "Limited Confidence" for the past performance factor means that the offeror's proposal is not awardable without a change or changes to the offeror's proposal. A proposal that includes a "Limited Confidence" rating is considered to be susceptible to correction if the contracting officer determines that an exchange (pursuant to FAR 15.306) is appropriate and said exchange is conducted. A rating of "No Confidence" for the past performance factor means that the offeror's proposal is not awardable, is not susceptible to correction, and will not be further evaluated.

Volume II: Price Proposal Evaluation Criteria
Factor IV - Price Proposal:
Price proposals will be evaluated on the basis of price reasonableness in accordance with FAR 15.404-1. The Government will evaluate offers for award purposes by adding the total price in the Services Price Worksheet for the ordering period and FAR 52.217-8 option period.
Although Price is considered in a manner that makes it less important than the Non-Price factor, it has the potential to become more significant during the evaluation process. The degree of importance of the price will increase with the degree of equality of the proposals in relation to the other factors on which selection is to be based. The importance of price will also increase when a proposal's price is so significantly high as to diminish the value to the Government that might be gained under the other aspects of the offer. If, at any stage of the evaluation, all offerors are determined to have submitted equal, or virtually equal, or generally equivalent, non-price proposals, price could become the factor in determining which offeror receives the award. The contracting officer may evaluate any and all information submitted by the vendor to support the reasonableness of prices proposed.
The method of evaluation used by the contracting officer is solely within the discretion of the contracting officer.
Options, to include FAR 52.217-8, will be evaluated pursuant to solicitation provision FAR 52.217-5, Evaluation of Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic
requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).
Evaluation of Travel
The requirement does include travel pricing. The dollar values provided in the addendum to FAR 52.212-1, under Volume II: Factor IV - Price Proposal, in regards to Travel have been predetermined by the acquiring command, and shall be utilized for evaluation purposes in determining the total price for the contract.
Offerors responding to this solicitation are advised that, prior to award, the government may request Offerors to submit information/data to support price reasonableness such as copies of paid invoices for the same or similar items, sales history for the same or similar items, price list with effective date and/or copies of catalog pages along with any applicable discounts. Failure to submit the requested information may result in disqualification of the submitted proposal.

A written notice of award or acceptance of a proposal e-mailed or otherwise furnished to the successful Offeror within the time for acceptance specified in the proposal shall result in a binding contract without further action by either party.

Rating Tables

Technical Acceptable/Unacceptable Ratings Table 1

These ratings will be used in the evaluation of Phase I, Factor I - Facilities Clearance.

Rating	**Description**
Acceptable	Proposal clearly meets the minimum requirements of the solicitation
Unacceptable	Proposal does not clearly meet the minimum requirements of the solicitation

Combined Technical/Risk Table 2

These ratings will be used in the evaluation of Phase II, Factor II - Technical Approach.

Adjectival Rating	**Description**
Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Unacceptable	Proposal does not meet requirements of the solicitation and, thus, contains one or more deficiencies and is un-awardable, and/or risk of performance is unacceptably high.

DEFINITIONS:

Strength - an aspect of an offeror's proposal with merit or will exceed specified performance or capability requirements to the advantage of the Government during contract performance.

Significant Strength - an aspect of an offeror's proposal with appreciable merit or will exceed specified performance or capability requirements to the considerable advantage of the Government during contract performance.
Weakness - a flaw in the proposal that increases the risk of unsuccessful contract performance.
Significant Weakness - a flaw that appreciably increases the risk of unsuccessful contract performance.
Deficiency - a material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level.
Risk - (as it pertains to source selection) The potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an offeror's proposed approach to achieving the technical factor or sub-factor may involve risk of disruption of schedule, degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance.
Uncertainty - aspect of a non-cost/price factor proposal for which the intent of the offer is unclear (e.g., more than one way to interpret the offer or inconsistencies in the proposal indicating that there may have been an error, omission, or mistake)

Past Performance Relevancy Ratings Table 3
These ratings will be used in the evaluation of Phase II, Factor III - Past Performance.

Rating	**Description**
Very Relevant	Present/past performance effort involved essentially the same scope and magnitude of effort this solicitation requires.
Relevant	Present/past performance effort involved similar scope and magnitude of effort this solicitation requires.
Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort this solicitation requires.
Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort this solicitation requires.

Past Performance Confidence Assessment Ratings Table 4
These ratings will be used in the evaluation of Phase II, Factor III - Past Performance.

Rating	**Description**
Substantial Confidence	Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.

Neutral Confidence	No recent/relevant performance record is available or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The offeror may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.
No Confidence	Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will be able to successfully perform the required effort.

FAR Clauses Incorporated by Full Text

52.212-2 Evaluation-Commercial Products and Commercial Services. (Deviation 2026-O0038) (Feb 2026)

EVALUATION-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (FEB 2026) (DEVIATION 2026-O0038)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

[Insert evaluation factors in the relative order of importance. For requests for proposals, state: Evaluation factors other than price when combined are [significantly more important than price/approximately equal to price/significantly less important] than price. For invitations for bids, list only price and price-related factors.]

Facilities Clearance

Technical Approach

Past Performance

Price

(b) *Options (if applicable)*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)